3. The employer's duties and obligations:

A. Fill out and return the *Answer* on page **5** on or before the court date listed on page **1**. The *Answer* asks basic questions about the debtor and their income.

B. The first question in the *Answer* is whether the debtor is employed by you or works for you under some other contractual relationship.I

- **i.** If they do not, then check the "No" box, and send the form back.
- **ii.** If the debtor does work for you, answer the rest of the *Answer* about pay periods, hourly wage, gross pay, and required deductions from gross pay.
  The *Answer* explains how to calculate the amount you need to withhold for the garnishment/turnover order.
- **iii.** If a positive amount is listed on section **4M** on the *Answer*, withhold that amount until there is a court order to turn over the wages or the *Citation* is dismissed.
- **iv.** If income varies, withholding must be recalculated for every pay period.

C. Sign the form, file the original with the Circuit Clerk who issued the *Citation,* and keep a copy for yourself. Give or send a copy of the completed *Answer* to the debtor and to the creditor.

D. Do not withhold any wages from the debtor if the debtor's income after taxes is equal to or less than 45 times (x) the federal or Illinois minimum wage, whichever is greater. See the **Exempt Wages Table** below to determine what wages are exempt based on the current minimum wage.
If the debtor's wages after taxes are more than this exemption, then you should withhold either (1) 15% of the debtor's gross income or (2) the debtor's income after taxes minus the exemption, whichever is less. See how to calculate the amount in the *Answer*.
Do not turn over any funds until you receive a wage deduction/turnover order.

EXEMPT WAGES TABLE

Timeframe:	If Paid **Weekly**	If Paid **Every 2 Weeks**	If Paid **Semi-Monthly**	If Paid **Monthly**
As of January 1, 2025 *(Minimum Wage $15/hr)*	$675	$1350	$1462.50	$2925

4. Certification By the Creditor

A. *Enter the name of the debtor and the date of the judgment. If the judgment has been renewed ("revived"), enter that date.*

A judgment was entered or renewed against _____,
Name

the debtor, on _____.
Date

B. The amount of the judgment is $ _____.
Amount of Judgment

C. *Enter how much is still owed to you. You are entitled to the judgment amount, court costs (e.g., filing fees, service fees, sheriff's fee, etc.), and post judgment interest of 9% per year. Subtract any payments made by the debtor.*

The **current balance due**, including judgment interest and the creditor's court costs, minus any payments made by the debtor or on behalf of the debtor after the judgment was entered is $_____.

Check one of the boxes below depending on the judgment:

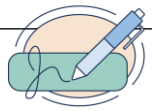
☐ This is a consumer debt judgment with 5% per year post judgment interest.

☐ This is **not** a consumer debt judgment with 9% per year post judgment interest.

Case Number _____

You must mail this Citation by first-class regular mail to the debtor.

I certify I will mail by regular first-class mail a copy of the *Citation* to the debtor at the address shown above within 3 business days after service on the employer's registered agent.



SIGN

Under 735 ILCS 5/1-109, my signature means that:

1) Everything in this document is true and correct, or I have been informed or I believe it to be true and correct, and

2) I understand that making a false statement on this form is perjury and has penalties provided by law.

If you are filling out this form online, sign your name by typing it. If you are filling out this form by hand, sign and print your name.

Signature /s/_____ Print Name _____

☐ **I am completing this form for myself**

Phone Number _____ Email (if you have one) _____

Address _____

Street, Apt. # *City* *State* *Zip Code*

Be sure to **check your email every day** so you do not miss important information, court dates, or documents from other parties.

☐ **I am a lawyer completing this form on behalf of a client** (Client name): _____

Lawyer Name _____ Attorney Number _____

Lawyer Phone Number _____ Law Firm _____

Lawyer Email _____

Address _____

Street, Apt. # *City* *State* *Zip Code*

The Circuit Clerk will fill in this section.

To be filled in by the Circuit Clerk:

Witness this Date: _____

Seal of Court

Clerk of the Court: _____

WHAT'S NEXT

NEXT STEP FOR PERSON FILLING OUT THIS FORM:

After you fill out your forms, file them with the Circuit Clerk's office in the county where your case is taking place. After the Circuit Clerk's office has stamped the court's seal to this form, then send your forms to the other people in the case. Find your Circuit Clerk: ilcourts.info/clerks.

Learn more about each step in the process and how to file in our Instructions: ilcourts.info/how-to-employer-citation

THE NEXT FORM IS FOR THE EMPLOYER TO FILL OUT AND FILE OR BRING TO COURT.

ANSWER TO CITATION PROCEEDING

(TO BE FILLED OUT BY EMPLOYER)
IN THE STATE OF ILLINOIS, CIRCUIT COURT

COUNTY: _____
County Where You Are Filing the Case

Enter the case information as it appears on your other court documents.

PLAINTIFF:
Who started the case. *First, Middle, and Last Name, or Business Name*

DEFENDANT:
Who the case was filed against. _____
First, Middle, and Last Name

RESPONDENT:
Employer. _____
Employer's Business Name

_____
Case Number

To Creditor:

- Fill out the section above in the same way you did on page **1**. Do not complete the rest of the form.

To Employer:

- Fill out the form below and sign at the bottom.
- Section 4 will automatically calculate the correct dollar amounts if you are filling this form out on a computer.

1. Do you pay any money to the debtor listed in section 1 on the *Citation*? ☐ Yes ☐ No

STOP

If your answer is **Yes**, complete the rest of the form.
If your answer is **No**, check the box next to **A** or **B** below and answer depending on the situation. Then, sign at the end of the form.

A. ☐ If the debtor is no longer working for you, enter the last date of employment: _____
Date

B. ☐ The debtor is working for you but is not currently getting paid because of

☐ Unpaid leave **or** ☐ Other: _____

until _____
Approximate Date of Return

2. Of the money paid to the debtor, is any of that money *(check all that apply)*:

A. ☐ Subject to prior court ordered deduction (including child/spousal support)

Case Number: _____ State: _____ County: _____

B. ☐ Disability ☐ Retirement ☐ Otherwise exempt *(specify)*: _____

3. How often do you pay the debtor?

☐ Every week ☐ Every two weeks ☐ Semi-monthly

☐ Monthly ☐ Other: _____

4. CALCULATION TO DETERMINE AMOUNT OF WITHHOLDING

*Enter the amounts for the most recent paycheck. The amount to be withheld is in **4M**. If income varies, withholding must be recalculated for every pay period. If a number is negative, enclose it in parentheses like this: ($50.00).*

A. Gross wages per paycheck…… **A.** _____

B. Mandatory contributions to pensions or retirement plan…….. **B.** _____

C. Subtract (B) from (A)…… **C.** _____

D. Multiply (C) by 0.15…… **D.** _____

E. Total of FICA, State Tax, Federal Tax, and Medicare…….. **E.** _____

F. Subtract (E) from (C)…… **F.** _____

G. Enter amount of exempt wages per pay period from the **Exempt Wages Table** below. If the pay period is not in this table, multiply the number of weeks in the pay period by the weekly exempt wages amount…….. **G.** _____

H. Subtract (G) from (F)…… **H.** _____

I. The lesser of (D) or (H)…… **I.** _____

*In **4I**, if the number is zero or a negative number, do not withhold any wages.*
If it is a positive number, continue the calculation.

J. Child Support or other Court Ordered Deduction…….. **J.** _____

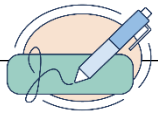
K. Subtract (J) from (I)…….. **K.** _____

L. Multiply (K) by 0.02 (statutory fees to the employer)…….. **L.** _____

M. Subtract (L) from (K) for amount to be withheld…….. **M.** _____
Amount To Be Withheld

EXEMPT WAGES TABLE

Timeframe:	If Paid **Weekly**	If Paid **Every 2 Weeks**	If Paid **Semi-Monthly**	If Paid **Monthly**
As of January 1, 2025 *(Minimum Wage $15/hr)*	$675	$1350	$1462.50	$2925



SIGN

Under 735 ILCS 5/1-109, my signature means that:

1) Everything in this document is true and correct, or I have been informed or I believe it to be true and correct, and

2) I understand that making a false statement on this form is perjury and has penalties provided by law.

If you are filling out this form online, sign your name by typing it. If you are filling out this form by hand, sign and print your name.

Signature /s/_____ Print Name _____

Date _____ Job Title _____

☐ **I am completing this form for myself**

Phone Number _____ Email (if you have one) _____

Address _____

Street, Apt. # *City* *State* *Zip Code*

Be sure to **check your email every day** so you do not miss important information, court dates, or documents from other parties.

☐ **I am a lawyer completing this form on behalf of a client** (Client name): _____

Lawyer Name _____ Attorney Number _____

Lawyer Phone Number _____ Law Firm _____

Lawyer Email _____

Address _____

Street, Apt. # *City* *State* *Zip Code*